

Tentative Rulings for Department 503

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Tentative Ruling

Re: **Sandra Alvarez v. Midfirst Bank**
Superior Court Case No. 25CECG05174

Hearing Date: July 16, 2026 (Dept. 503)

Motion: By Plaintiff, Sandra Alvarez, Compelling Production of Trustee Sale Authority, Verification Materials, and QWR Responses

Tentative Ruling:

To deny.

Explanation:

Plaintiff, Sandra Alvarez, ("Alvarez" or "plaintiff") makes this motion to compel production of documents pertaining to the Trustee Sale Authority, Verification Materials, and QWR Responses. Alvarez's Notice of Motion provides that this motion is being made against "Quality Loan Service Corporation to produce documents establishing the authority relied upon to notice and conduct the trustee's sale of Plaintiff's property located at 751 S. Fairway Avenue, Fresno, California 93727 (APN 474-052-13)." Alvarez's moving papers then seeks production from numerous "defendants" without naming them.

A propounding party may move to compel an initial production of a document on the ground that the responding party failed to serve a timely response to its written discovery request. (Code Civ. Proc. § 2031.300, subd. (b).) To establish this ground, the propounding party must show (1) proper service of the discovery request on the responding party; (2) the deadline to respond to the demand has passed; (3) the responding party did not timely respond to the request; and (4) the responding party waived any objections to the discovery request. (O'Connor's California Practice, Civil Pretrial, Ch. 9-E § 3 (2022 ed.).) "The motion should be supported by a copy of ... the demand to produce and the proof of service." (*Ibid.*)

Here, Alvarez fails to present any documentation that she has complied with the above rules and procedures in order to compel production of the documents she seeks. Accordingly, the motion is denied.

Furthermore, self-representation is not a ground for lenient treatment and, as is the case with attorneys, a person who represents herself "must follow correct rules of procedure." *Nwosu v. Uba* (2004) 122 Cal. App.4th 1229, 1247.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

